



COUNCIL COMMUNICATION

TO:	Mayor and Council
FROM:	Ronda Henger
DEPARTMENT:	Human Resources
DATE:	August 3, 2020
SUBJECT:	EPBA Agreement

DESCRIPTION:

Approval of Englewood Police Benefit Association (EPBA) Contract

RECOMMENDATION:

Staff recommends that the City Council approve the Agreement between the City of Englewood and the Englewood Police Benefit Association.

SUMMARY:

Under the terms within the Englewood Home Rule Charter Article XV, Englewood Employee Relations and Career Service Systems Act, the City is required to collectively bargain with its certified employee organizations. The City currently has recognized two organizations; Englewood Employee Association (EEA) and the Englewood Police Benefit Association (EPBA). The current contract of the EPBA expires on December 31, 2020.

City Staff and the EPBA worked to achieve a Collective Bargaining Agreement (CBA) that continues the City's program of competitive compensation and benefits, and that responds to the needs and desires of the patrol officers included in the Police Bargaining Unit. The disruptions and uncertainty generated by the global coronavirus pandemic were considered at every stage of the process through which the new CBA was negotiated. At the end of the day, both the EPBA and Management deem their negotiations a success and, together, are recommending adoption of the proposed CBA.

City Management was represented by Labor Relations Counsel Kevin Paul and Cindy Coleman of Range PC, along with Human Resources Director Ronda Henger and Finance Director Maria Sobota (together, the Bargaining Team). Deputy Chief Sam Watson provided support to the Bargaining Team in formulating and responding to proposals and counter-proposals. City Manager Lewis and City Attorney McKinney Brown were kept apprised of the City's bargaining positions and the Bargaining Team's recommendations as negotiations moved toward an agreement.

With respect to the specific CBA Articles that were the subjects of negotiation:

- Article 1 Duration of Contract – 2 years (through 12/31/2022)
- Article 3 Employee Rights – Paid leave to attend Association leadership training
- Article 8 Layoffs – Clarifies Reduction-in-Force and recall procedures
- Article 9 Compensation – 3.5% annual increases in Hourly Rates

- City may reopen for negotiations if General Fund Revenues fall below budget by 3% or more for two consecutive months
 - Does not alter Council's statutory authority to annually budget and appropriate funds
- Article 11 Overtime Work & Pay, Compensatory Time Off – Limits maximum carryover of unused Comp Time to 48 hours per year; additional Comp Time is paid out
- Article 15 Annual Leave/Paid Time Off – Maximum annual PTO carryover reduced to limit 1,000+ hour accruals in the future and encourage use of PTO
 - Unused PTO cashed out or deferred into 457 Retirement Plan or HSA each year
 - Includes 24 hours of Personal Emergency PTO that can be used on short notice
- Article 19 Military Leave - consistent with existing policy and federal regulation
- Article 19.5 Wellness Visits - up to 6 mental health visits for Officer and family members; paid leave available if needed
- Article 20 Sick Leave & Salary Continuation - Replaces Sick & Catastrophic Illness Program
 - 100 hours of annual Sick Leave for Officer or family member illness or injury
 - 100% paid leave for treatment and recovery for Officers up to 12 weeks
 - 50% paid leave to care for a family member up to 12 weeks
- Article 21 Workers' Compensation - technical clarification regarding length of benefit period
- Article 28 Corrective Action and Disciplinary Action - combines previous articles 28 & 29
 - References the Chief's discretionary authority regarding discipline
 - Authority to establish and amend policies & procedures is not limited by the CBA
- Article 32 Labor Management Committee Meetings - meet quarterly to discuss issues of interest and head off problems
- Hazard Pay - Pandemic related hazard pay for essential workers: rejected in light of lack of federal financial support and need for across-the-board policy

ANALYSIS:

The focus of the Collective Bargaining process for the City in 2020 was to ensure fairness and equity in the approach to our police employees and to clean up of the contract language. Because of the harmonious relations between the EPBA and the City Administration, Staff is pleased to report a successful negotiation.

FINANCIAL IMPLICATIONS:

The new CBA provides:

- a 3.5% annual salary increase for each covered officer; and,
- a Paid Time Off Program that reduces annual carryover amounts and includes an annual "true up" allowing officers to defer the value of unused leave into the Section 457 Retirement Savings Plan or Health Savings Plan; and,
- a Sick & Family Leave Salary Continuation Program that meshes with the federally funded Family and Medical Leave Act.

ALTERNATIVES:

If the City Council were not to agree to this Collective Bargaining Agreement, it would then force both the City and the EPBA into arbitration.

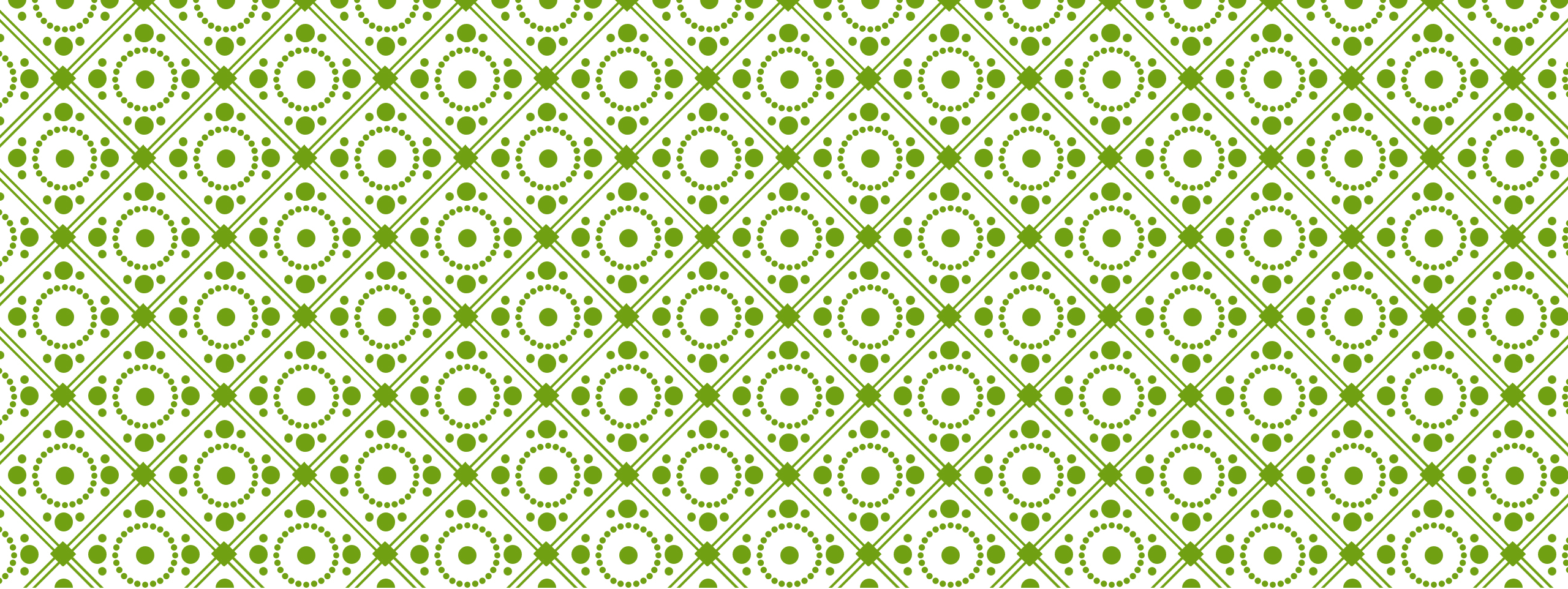
CONCLUSION:

The CBA favorably addresses every issue Management put on the table, while also providing appropriate, additional compensation and benefits to patrol officers. We note that the EPBA Bargaining Team was both thoughtful and reasonable throughout the process, and that negotiations were marked by a spirit of compromise and mutual respect.

Based upon all of the foregoing, the Bargaining Team recommends the Council ratify the 2021-2022 EPBA CBA.

ATTACHMENTS:

EPBA Presentation to City Council
Agreement



**ENGLEWOOD POLICE BENEFIT ASSOCIATION
COLLECTIVE BARGAINING AGREEMENT**



CITY COUNCIL EXECUTIVE SUMMARY

- ❖ **#1 Duration of Contract** – 2 years (through 12/31/2022)
- ❖ **#3 Employee Rights** – Paid leave to attend Association leadership trainings
- ❖ **#8 Layoffs** – Clarifies Reduction-in-Force and recall procedures
- ❖ **#9 Compensation** – 3.5% annual increases in Hourly Rates
 - City may reopen for negotiations if General Fund Revenues fall below budget by 3% or more for two consecutive months
 - Does not alter Council's statutory authority to annually budget and appropriate funds
- ❖ **#11 Overtime Work & Pay, Compensatory Time Off** – Limits maximum carryover of unused Comp Time to 48 hours per year; additional Comp Time is paid out

CITY COUNCIL EXECUTIVE SUMMARY

- ❖ **#15 Annual Leave/Paid Time Off** – Maximum annual PTO carryover reduced to limit 1,000+ hour accruals in the future and encourage use of PTO
 - Unused PTO cashed out or deferred into 457 Retirement Plan or HSA each year
 - Includes 24 hours of Personal Emergency PTO that can be used on short notice
- ❖ **#19 Military Leave** – Consistent with existing policy and federal regulation
- ❖ **#19.5 Wellness Visits** – Up to 6 mental health visits for Officer and family members; paid leave available if needed
- ❖ **#20 Sick Leave & Salary Continuation** – Replaces Sick & Catastrophic Illness Program
 - 100 hours of annual Sick Leave for Officer or family member illness or injury
 - 100% paid leave for treatment and recovery for Officers up to 12 weeks
 - 50% paid leave to care for a family member up to 12 weeks

CITY COUNCIL EXECUTIVE SUMMARY

- ❖ **#21 Workers' Compensation** – technical clarification regarding length of benefit period
- ❖ **#28 Corrective Action and Disciplinary Action** – combines previous articles 28 & 29
 - References the Chief's discretionary authority regarding discipline
 - Authority to establish and amend policies & procedures is not limited by the CBA
- ❖ **#32 Labor Management Committee Meetings** – meet quarterly to discuss issues of interest and head off problems
- ❖ **Hazard Pay** – pandemic related hazard pay for essential workers – Rejected in light of lack of federal financial support and need for across-the-board policy

❖ Conclusion

The City's Bargaining Team is recommending the Council ratify the 2021-2022 EPBA-CBA

COLLECTIVE BARGAINING AGREEMENT
By & Between
THE CITY OF ENGLEWOOD, COLORADO
And
THE ENGLEWOOD POLICE BENEFIT ASSOCIATION

JANUARY 1, 2021 – DECEMBER 31, 2022

■ **RECITALS**

I. This Collective Bargaining Agreement (the “Contract”) By and Between the City of Englewood, Colorado (the “City”) and the Englewood Police Benefits Association (the “EPBA”) (collectively, the “Parties”) was negotiated by the Parties commencing upon April 16, 2020 and concluding upon June 23, 2020.

II. Throughout the negotiation of the Contract, the EPBA was represented by:

- A. Sean McCauley of the law firm McCauley & Roach;
- B. Officer Dirk Smith;
- C. Officer Dave Jones;
- D. Officer Matt Mander; and
- E. Mike Violette, Executive Director, Colorado Fraternal Order of Police.

III. Throughout the negotiation of the Contract, the City was represented by:

- A. Kevin Paul of the law firm Range PC;
- B. Ronda Henger, City Human Resources Director; and
- C. Maria Sobota, City Finance Director.

IV. Bargaining Teams for the City and the EPBA reached tentative agreements on all Articles of the Contract on June 23, 2020.

V. Forty-seven members of the EPBA voted unanimously to ratify the Contract between July 6 and July 13, 2020.

VI. The Englewood City Council voted unanimously to ratify the Contract on _____, 2020.

VII. The Contract is intended to promote harmonious relations; an equitable and workable procedure for the resolution of differences; the establishment of rates of pay and hours of work; and other conditions of employment as permitted by the City’s Home Rule Charter (the “Charter”).

VIII. Nothing in this Contract shall be construed to restrict, limit, or impair the rights, powers, and authorities of the City as granted to it by the Constitution of the State of Colorado, by State statute, by State regulation, by Charter, or by City Ordinance, to:

- A. Maintain and improve the efficient operation, and effectiveness, of Police

Department operations;

B. Determine the overall methods, processes, means, job classifications or staffing by which Police Department operations are conducted;

C. Hire; supervise; promote; schedule; retain; discipline; or terminate the employment of Police Officers;

D. Take any and all actions to carry out the mission of the City, and of the Police Department, in cases of emergency.

■ **DEFINITIONS**

For purposes of this Contract:

I. Administrative Policy Manual means the Administrative Policy Manual of the City of Englewood, Colorado, as updated September 2017, and as thereafter revised from time to time.

II. Bargaining Unit means the group composed of all Officers.

III. Charter means the Home Rule Charter of the City of Englewood, Colorado.

IV. Chief means the Chief of the Englewood Police Department.

V. City means the City of Englewood, Colorado.

VI. City Manager means the City Manager of Englewood.

VII. Conclusion Date means December 31, 2022.

VIII. Contract means the Collective Bargaining Agreement between the City of Englewood, Colorado and the Englewood Police Benefit Association for the period commencing on January 1, 2021 and concluding on December 31, 2022.

IX. Contract Term means the period commencing on the Effective Date and concluding on the Conclusion Date.

X. Corrective Action has the meaning set forth in the Policy Manual.

XI. Department means the Englewood Police Department.

XII. Disciplinary Action has the meaning set forth in the Policy Manual.

XIII. Effective Date means January 1, 2021.

XIV. Employee Organization means the EPBA.

XV. EPBA means the Englewood Police Benefit Association in its capacity as the exclusive bargaining representative of the Officers covered by this Contract.

XVI. Immediate Family Member means an Employee's spouse or domestic partner, or the children, stepchildren, foster children, grandchildren, parents, grandparents, brother, or sister of the Employee, or of the Employee's spouse or domestic partner.

XVII. Letter of Corrective Action has the meaning set forth in the Policy Manual.

XVIII. Log Entry has the meaning set forth in the Policy Manual.

XIX. Municipal Code means the Englewood Municipal Code 2000, as amended from time to time.

XX. Officer means a full-time, classified, sworn police officer below the rank of sergeant employed by the City.

XXI. Overtime Pay means pay calculated at one and one-half (1.5) times an Officer's regular Hourly Rate.

XXII. Overtime Work means each hour, or fraction thereof, worked in excess of an Officer's regular, daily work schedule.

XXIII. Parties means, collectively, the City and the EPBA.

XXIV. Policy Manual means the City of Englewood Police Department Policy Manual, as amended from time to time.

XXV. Prior Contract means the Collective Bargaining Agreement between the City of Englewood, Colorado and the Englewood Police Benefit Association for the period commencing on January 1, 2019 and concluding on December 31, 2020.

XXVI. Probationary Period has the meaning set forth in the Policy Manual.

ARTICLE 1. DURATION OF CONTRACT

I. This Contract shall take effect on January 1, 2021 (the “Effective Date”) and shall continue in force through and including December 31, 2022 (the “Conclusion Date”).

II. This Contract, or any part or parts of it, may be terminated or renegotiated at any time by mutual agreement of the Parties.

III. In accordance with Section B, above, the Parties agree that Article 9 (Compensation) of this Contract may be re-opened under the circumstances described in that Article.

IV. The Parties agree that payments made for Comp Time accrued, but not used, as of December 31, 2022 will be made, in accordance with Article 11, after the Conclusion Date. Likewise, the Parties agree that payments for PTO accrued, but not used, as of December 31, 2022 will be made, in accordance with Article XV, after the Conclusion Date.

V. If any Article or Section of this Contract should be held invalid by operation of law, or by any Court of competent jurisdiction, or if compliance with or enforcement of any Article or Section should be restrained by such Court, the remainder of this Contract shall not be affected thereby and this Contract shall remain in full force and effect, and the Parties shall promptly meet and negotiate for the purpose of attempting to arrive at a mutually satisfactory replacement for such Article or Section.

VI. The Parties agree and understand that the provisions of this Contract shall in no way displace or modify present or future statutory or case law of the State of Colorado.

VII. The Parties acknowledge that during negotiations which resulted in this Contract, each had the unlimited right and opportunity to make demands and proposals with respect to any subject or matter appropriate for contract negotiations and that the understandings and agreements arrived at by the Parties after this exercise of that right and opportunity are set forth in the Contract.

ARTICLE 2. RECOGNITION

The City recognizes the EPBA as the Employee Organization certified by the City as the exclusive representative of Officers within the Bargaining Unit.

ARTICLE 3. EMPLOYEE RIGHTS

- I.** An Officer who is a member of the Bargaining Unit shall have the right to:
 - A.** Form, join, support, or participate in, or to refrain from forming, joining, supporting, or participating in an Employee Organization and its lawful activities;
 - B.** Bargain collectively through her or his Employee Organization;
 - C.** Be free from interference with, restraint from, coercion because of, or discrimination in response to, the Officer's exercise of the rights set forth in this Contract.
- II.** The Parties agree that an Officer accused of wrongdoing related to her or his employment with the Department shall be entitled to an impartial investigation of those accusations conducted in accordance with policies and procedures adopted and published by the Department, which shall not be revised by the Department absent advance consultation with, and review by, the EPBA.
- III.** The City shall provide Officers a total annual allotment of two hundred (200) hours of paid leave to attend trainings or conferences related to the Officer's participation in the EPBA. The EPBA, rather than the City, shall bear those costs related to the Officer's participation in these trainings. An Officer's participation in these trainings is subject to the Chief's approval, based upon the Department's staffing needs.

ARTICLE 4. SENIORITY

- I.** For the purposes of this Contract, seniority shall be determined by length of continuous full-time service with the Department beginning on the date an Officer is sworn in as a City police officer. In cases where two or more Officers have the same hire date, the badge number as issued by the Department shall establish priority of position on the seniority list. Officers shall not continue to accrue seniority while laid off, and seniority will terminate when an Officer has been laid off for a period of twelve (12) months.
- II.** After an Officer successfully completes the Probationary Period, their name shall appear on the seniority list as of their date of hire as a City police officer.
- III.** The seniority of an Officer shall terminate when an Officer who has been laid off fails to return to work within seven (7) days of the date upon which the City issues the Officer a request to return to work.
- IV.** When an Officer's employment with the City is terminated for any reason, and the Officer is subsequently reinstated, the Officer's seniority shall be restored as if they had never been terminated.
- V.** If an Officer is absent for three (3) consecutive regularly scheduled working days without communicating with their supervisor, absent good cause as determined by the Chief, the Officer shall be deemed to have abandoned their position and to have forfeited their seniority.
- VI.** An Officer who is rehired not later than eighteen (18) months after leaving City employment will have their prior seniority restored to the level at which it existed on the Officer's termination date.

ARTICLE 5. HOURS OF WORK

The Department shall observe office and working hours necessary for the efficient transaction of their respective services.

I. Work Period

A work period is a regular recurring period of fourteen (14) consecutive twenty-four (24) hour periods as defined by the City's Payroll Schedule.

II. Work Schedule

The workweek need not be the same as the calendar week. The workweek may begin on any day of the week and any hour of the day and need not be the same for all employees. For Officers assigned to the Investigations Bureau, the work schedule, including roll call and meal periods, shall consist of five (5) eight (8) hour workdays. Investigations personnel shall be permitted to "flex" their schedules and work four (4) ten (10) hour workdays with supervisor approval. For Officers assigned to the Uniform Patrol Bureau, Traffic and the Impact Team, the work schedule, including roll call and meal periods, shall consist of four (4) ten (10) hour workdays. Any change in an Officer's bid or assigned schedule (starting time, quitting time, scheduled days off) will be made in accordance with Section III., except schedule changes may be made without notice if the affected Officer agrees.

The City agrees to review with EPBA representatives issues and concerns regarding the method and possible compensation associated with schedule changes.

III. Changing Work Schedules

The Chief may change the work schedule to meet the needs of the Department. In such circumstances, the Chief shall provide a minimum of five (5) days' notice to the EPBA. Work schedules may be changed without advance notice in the case of emergencies as determined by the Chief. When an employee's work schedule is changed for purposes of training, special instruction, etc., the supervisor shall make a reasonable effort to accommodate the employee's interests concerning the scheduled change.

IV. Staffing

The need for an appropriate level of staffing is recognized by the City for the purpose of efficiency and safety. The Department will address this issue in Department policy.

V. Meal Periods

Officers shall be granted a paid meal period of thirty (30) minutes for each eight (8) hour work shift. Officers working a ten (10) hour work shift shall be allowed a paid forty-five (45) minute meal period. An Officer may conduct personal business during the meal period. The meal period shall be authorized and controlled by the Officer's supervisor.

VI. Rest Periods

Officers shall be granted a paid rest period not to exceed fifteen (15) minutes during approximately the first one-half of their regular workday and an additional fifteen (15) minutes rest break approximately in the second one-half of the workday. Rest periods shall be authorized and controlled by the Officer's supervisor.

**ARTICLE 6. BIDDING PROCEDURES FOR SHIFT ASSIGNMENT:
Bidding for Watches and Days Off**

I. Seniority applicable to the seniority bid process will be determined in accordance with the total length of continuous employment City Officer. Prior City employment in other than a Police Officer capacity will not apply toward seniority. Probationary Officers will not be included in the bid process.

II. The seniority bid system will be applicable to personnel assigned to the Uniform Patrol Bureau only and will not be authorized in any other bureau or special assignment.

III. The Uniform Patrol Bureau Commander will develop and post a schedule prior to each year for a twelve-month period.

IV. The bid process will begin on September 1st of each year and shall be completed by October 31st of each year. Officers will have one (1) calendar day to submit their bid request upon being notified that it is their turn to bid. Officers who bid during working hours will submit their bid prior to the end of their shift. The bid request shall consist of the Officer's choice of shift assignment, days off and any seniority vacation and/or holiday requests as provided under Article 15 and Article 16. Officers' time for participating in the bid process shall not be considered hours worked for purposes of calculating overtime. The Uniform Patrol Bureau Commander shall make reasonable efforts to keep Officers apprised of the status of the bid process.

V. There will be a total of five (5) non-biddable positions which shall consist of two (2) non-biddable positions on Watch I and three (3) non-biddable positions on Watch II. Non-biddable positions shall not have any combination of Friday, Saturday, or Sunday as the positions' regular days off unless agreed to by the Association and the Uniform Patrol Bureau Commander. The bidding process will begin with the most senior Officer bidding the positions of his/her choice. In descending order of seniority, each remaining Officer will have choice of the remaining biddable positions. The Uniform Patrol Bureau Commander may open the bid for any or all of the non-biddable positions at his discretion.

VI. Officers may request non-biddable positions and an attempt will be made to accommodate them, but such positions will be assigned at the discretion of the division commander. If an Officer fails to submit a bid in accordance with the bidding procedure, the Officer will relinquish the opportunity to bid by seniority and will be assigned at the discretion of the Uniform Patrol Bureau Commander.

VII. When a vacancy in Patrol occurs during the bid year due to a resignation, termination, promotion or a bid of a vacant position in accordance with this section, the Department shall place the vacant position up for bid for three (3) calendar days by posting notice of the vacancy via department email. The notice shall include a description of the vacant position and the deadline for submitting the bid to the Uniform Patrol Bureau Commander. Once the three (3) days expires, the Department shall review the submitted bids and the position shall be awarded to the most senior bidder.

There shall be a maximum of two (2) total bids allowed, including the initial bid for the initial vacancy. Additional bids may be authorized at the discretion of the Uniform Patrol Bureau Commander.

VIII. An Officer in another assignment, who is reassigned to the Uniform Patrol Bureau will occupy the position vacated by the Officer they are replacing. If other positions are available, the Officer may request assignment to such positions, but may only be assigned at the discretion of the Uniform Patrol Bureau Commander. The Officer will then be allowed to bid at the next bid process.

IX. Officers who wish to permanently trade work schedules shall submit a request, in writing, to the Uniform Patrol Bureau Commander, who must approve all shift trades. Prior to such submission, the Officers in question shall contact, via department email, any affected Officers on the seniority list to determine whether any more senior Officers are interested in shifts involved in the trade. All responses from affected Officers shall be delivered to the Uniform Patrol Bureau Commander for review. The involved Officers shall be responsible for accommodating any more senior Officer's desire to fill a shift involved in the trade. If the involved Officers are unable to accommodate the more senior Officers, the trade will not be approved.

X. It is further understood that should a schedule change for unforeseen emergency circumstances arise, Officers may be assigned by the Uniform Patrol Bureau Commander from one shift to the other to handle whatever emergency situation exists during the duration of the emergency.

ARTICLE 7. SPECIAL ASSIGNMENT / OPTIONAL DUTY

- I.** Special Assignment means any assignment, other than Patrol, in which an Officer serves in a full-time capacity. Special Assignments include Detective, Professional Standards Bureau Investigator, School Resource Officer, Traffic Officer, Impact Team, and any other assignment that falls within the definition of Special Assignment.
- II.** Optional Duty means any duty that is in addition to an Officer's full-time assignment. Optional Duties include, but are not limited to: Armorer, SWAT Officer, Negotiator, Field Training Officer, Crime Scene Investigator, and Skills Instructors such as Firearms, Arrest Control, etc.
- III.** The Department will maintain a written process for selection and service, including performance of Officers for special assignments in the Policy Manual. A copy of the written process shall be provided to the EPBA for review at least fourteen (14) calendar days prior to it being disseminated to Officers.
- IV.** The Chief will consult with the EPBA regarding any future changes to the selection process.
- V.** Officers who voluntarily accept a Special Assignment or Optional Duty shall be permitted to withdraw from the Special Assignment or Optional Duty upon request, provided the Officer gives at least ninety (90) days advance notice. Officers who are required to fill a Special Assignment or Optional Duty involuntarily shall not be required to do so for more than one (1) calendar year.

ARTICLE 8. LAYOFF

- I.** Whenever the City determines that lack of work, lack of funds, or other conditions make a temporary or permanent reduction in force necessary, the City shall have authority to designate positions that will be subject to layoff.
- II.** The order of layoff shall be determined by the City Manager on the basis of the quality of work and length of service provided by the Officers in the designated position or positions.
- III.** Quality of work will include the Officer's total employment record. This record includes annual performance evaluations, commendations, disciplinary actions, education, training, and other factors in the discretion of the City Manager.
- IV.** Notwithstanding Section B, Officers in a designated position who have not yet completed the applicable Department Probationary Period, or who have less than twelve (12) months of full-time employment with the City, shall be laid off first, regardless of other consideration factors.
- V.** Non-Probationary Officers who are laid off have the right to be reemployed as a police officer in inverse order of layoff, provided that they are recalled within eighteen (18) months of layoff and that they continue to meet the qualifications for their position at the time of recall. Laid-off Officers will remain on the recall list for eighteen (18) months. In the event the quality and length of service of two or more recalled Officers are equal, seniority, as defined in Article 4, shall prevail. The recall list shall terminate after eighteen (18) months. If financial conditions warrant, and at the discretion of the Chief, an Officer, recalled from layoff to a classification lower than that held at the time of the layoff, may be moved up to the highest classification previously held at an accelerated pace.
- VI.** Officers shall not continue to accrue service credit, including seniority, or be eligible for any City benefits following layoff.
- VII.** In the event of a layoff, affected Officers will be given as much advance notice as possible.

**ARTICLE 9. COMPENSATION: Annual Hourly Rate Increase,
Class Increase, and Stipends**

I. Annual Hourly Rate Increase

A. The City desires to provide each Class of Officers a three and one-half percent (3.5 %) increase in their 2020 Hourly Rates, as set forth in Appendix A, commencing January 1, 2021.

B. Likewise, the City desires to provide each Class of Officers a three and one-half percent (3.5 %) increase in their 2021 Hourly Rates, as set forth in Appendix A, commencing January 1, 2022.

C. The City's present financial circumstances and forecasts, however, do not clearly establish that its General Fund Revenues can support these increases.

D. The Parties therefore agree that:

1. Commencing with the City's first full pay period of 2021, each Class of Officers will receive a three and one-half percent (3.5%) increase to their December 31, 2020 Hourly Rate, as set forth in Appendix A.

2. Commencing with the City's first full pay period of 2022, and upon appropriation by the City Council, each Class of Officers will receive a three and one-half percent (3.5%) increase to their December 31, 2021 Hourly Rate, as set forth in Appendix A.

E. As provided in Article 1, this Article 9 may be re-opened by the City solely for the purpose of negotiating a decrease in the Hourly Rate increases provided for above in Section (I) (D) upon the City's determination that its General Fund Revenues have fallen short of budgeted projections by three percent (3%) or more for not less than two consecutive months. The Parties agree that this provision is intended to operate solely during the term of this Contract and shall terminate upon the Conclusion Date.

F. The Parties shall cooperate in determining reasonable dates and times during which to conduct re-opened negotiations, which shall continue for up to four weeks. Should the Parties reach impasse with respect to the amount, if any, of the decreased Hourly Rate increase, the impasse will be resolved in accordance with Article XV, Section 137:6 of the City's Home Rule Charter.

G. All provisions of this Section (I) shall be subject to Section 29-1-110 of the Local Government Budget Law of Colorado, which prohibits the City from expending or contracting to expend any money, incurring any liability, or entering into any contract that, by its terms, involves expending money, in excess of amounts appropriated by the Englewood City Council in accordance with its approved budget, and which permits the City to enter into multiple-year contracts only if those contracts are each subject to annual

appropriation. See C.R.S. § 29-1-110 (“Expenditures not to exceed appropriation”); see *also* Englewood Home Rule Charter, Art. X, Part I, § 90 (Adoption of the budget and the appropriation ordinances).

II. Annual Wage & Salary Surveys

For purposes of a comparison of Officers’ wages, hours, benefits, and other terms or conditions of employment, in future negotiations and in proceedings under Article XV, Section 137:6 of the City’s Home Rule Charter, the Parties agree that the following shall be used as comparable jurisdictions: Arvada, Aurora, Boulder, Commerce City, Denver, Greenwood Village, Lakewood, Littleton, Longmont and Thornton.

III. Class Increase

Officers shall become eligible to advance to the next classification in the Salary Schedule set forth in Appendix A on the anniversary of their date of hire. Officers who are subject to a performance improvement plan, or who are otherwise determined to be ineligible by the Chief, at the time they otherwise become eligible to advance to the next classification, shall remain in their current classification until they successfully complete the requirements of the performance improvement plan, or otherwise achieve the Chief’s approval, at which time they may advance to the next classification.

IV. Stipends

A. Master Police Officers (“MPOs”) shall be compensated at the rate of two (2) hours of Overtime Pay for each day they work in that capacity.

B. Field Training Officers (“FTOs”) shall be compensated at the rate of one (1) hour of Overtime Pay for each day they work in that capacity.

ARTICLE 10. MERIT PAY

I. Each Police Officer I shall be eligible for merit pay in an amount determined by the Chief, up to a total of \$1,000.

II. Such merit pay shall be awarded in the exercise of the Chief's discretion, based upon specific written objective and subjective performance criteria developed by the Chief. The Chief shall consult with the EPBA regarding the criteria and the criteria will be made available to Officers.

III. Eligible Officers who believe they meet the criteria for such an award shall submit their application through their immediate supervisor for review by the Merit Pay Review Committee on or before the Officer's employment annual evaluation date (date of hire). The Committee shall make a recommendation to the Chief regarding the amount of the merit pay, if any, to be awarded to the Officer. The amount recommended shall not exceed the amount set forth in Paragraph I, above. The Chief shall promptly consider and make a determination as to each such recommendation.

ARTICLE 11: OVERTIME WORK, OVERTIME PAY & COMPENSATORY TIME OFF

I. Overtime

- A.** Officers shall be compensated with Overtime Pay for Overtime Work.
- B.** Overtime Pay shall not be pyramided, compounded, or paid twice for the same hours worked.
- C.** The City retains the right to assign Overtime Work to any Officer qualified to perform the Work.
- D.** Overtime Work available during a given watch shall be offered on a voluntary basis to Officers working during the preceding or succeeding watch, as determined by the watch supervisor, in order of seniority. If no Officer accepts, the least senior Officer may be required to work the Overtime, an accommodation may be authorized, or the City may, at its discretion, call any Officer in to work the Overtime.

II. Compensatory Time Off

- A.** Officers who work Overtime, call-back, or standby hours may, in lieu of pay, take Compensatory Time Off upon mutual agreement between the Officer and the Officer's supervisor. If there is no mutual agreement, the Officer shall be paid.
- B.** During each Contract Year, Officers may accrue a maximum of eighty (80) hours of Compensatory Time Off ("Comp Time") to be utilized in accordance with Section 2.3 of the Administrative Manual, provided that Officers may not carryover from year to year more than forty-eight (48) hours of Comp Time. Officers who have greater than forty-eight (48) hours of Comp Time on December 31 of any Contract Year shall be paid for all Compensatory Time exceeding the carryover maximum of forty-eight (48) hours no later than January 30 of the following Contract Year.
- C.** Compensatory time is to be compensated at the rate of one and one-half hours of time off for each one hour of overtime, call back, or standby worked in excess of the daily scheduled work shift.
- D.** Employees who attend firearms qualification on their off-duty time will be guaranteed two (2) hours' Overtime Pay whether they qualify or not. Employees who have already qualified, shall not be compensated for any additional time spent on the range.

ARTICLE 12. CALLBACK

I. An Officer on off-duty status who is called back to duty for a non-emergency situation shall be credited with a minimum of two (2) hours of Overtime Pay. An Officer on off-duty status who is called back to duty for an emergency situation where the Officer is contacted and required to immediately report to work shall be credited with a minimum of two and one-half (2.5) hours of Overtime Pay or Overtime Pay for the Officer's actual time worked, whichever is greater.

II. Should any Officer be required to testify before any court or divisional administrative hearing as a result of their official duties with the City, the time spent by such Officer in providing such testimony shall be considered to be work time. If such appearance for testimony is at a time when the Officer would otherwise be off duty, the Officer shall be paid as provided under Section I above. The Officer shall pay to the City all witness fees, and other non-Department compensation paid to the Officer in conjunction with so testifying, excluding mileage fees. An Officer who is called for witness duty shall present to their supervisor the original summons or subpoena from the court or at the conclusion of such duty, shall provide a signed statement from the clerk of the court, or other evidence indicating the amount of time the Officer's court appearance required.

III. When an Officer is subpoenaed as a witness in private litigation to testify, not in their official capacity, but as an individual, the time absent by reasons thereof shall be taken as any accrued leave or leave without pay, if all accrued leave is exhausted.

ARTICLE 13. STANDBY

Employees assigned to standby duty shall be credited with two and one-half (2.5) hours of Overtime Pay for each twenty-four (24) hour period during which they are on standby. Officers assigned to standby for less than a twenty-four (24) hour continuous period shall be credited with one (1) hour of Overtime Pay for each such assignment.

ARTICLE 14. CLOTHING ALLOWANCE

I. The City shall furnish, or reimburse the cost of, uniforms, including leather gear, insignias, duty footwear and clothing, required while on duty, and shall pay all costs of maintenance, repair and cleaning thereof, provided that reimbursement of such costs shall not be required if approval of the Chief is not obtained in advance of purchase. All Officers assigned to non-uniform positions for a period of thirty (30) days or more and not required to be in uniform during work, shall receive a clothing allowance as follows:

A. Upon initial assignment to a non-uniform position, the Officer shall receive a lump sum of \$1200 to cover the initial cost of purchasing clothing for the first year of the Officer's assignment. Officers who leave a non-uniform position voluntarily within the first year of their assignment shall repay the clothing allowance at \$100 per month for every entire month remaining in the first year of their assignment.

B. After the first year of their assignment to a non-uniform position, Officers shall receive \$100 per month for each month that they remain in the non-uniform assignment.

II. The Officer shall be responsible for all lost or stolen items identified above, or damage to the same, as a result of the Officer's negligence or deliberate act.

III. The City will provide on a replacement basis a high-quality bullet resistant vest. Any bullet resistant vest issued after January 1, 2015 shall meet the minimum standard of Level II (A) on the National Institute of Justice's Standard for Bullet Resistant Vests. At the Officer's option, a Level III (A) vest will be provided at no additional cost to the Officer. Replacement shall be made once every five (5) years, or at such earlier time as the City is notified of any event or condition rendering such a vest unsafe for its intended purpose. In the event of specialized or customized vests, the City will pay the same dollar amount for the City issued and authorized vest with the Officer paying the differences in cost.

IV. All uniformed Officers shall be annually reimbursed the cost of one pair of duty footwear up to a maximum of \$200. Officers shall present a receipt for the footwear to the City before receiving the reimbursement.

V. Except in the case of the Officer's personal negligence, Officers shall be fully reimbursed for any Department approved firearm, prescription eyewear, or flashlight, purchased by the Officer that is damaged or destroyed in the performance of the Officer's official duties; or any Department approved firearm purchased by the Officer that is seized as evidence and not returned to the Officer within 30 days of seizure. Officers shall be furnished with or reimbursed for the costs of replacement batteries for flashlights and weapon sights. Officers must seek supervisory approval before purchasing replacement batteries and shall provide proper receipts to be eligible for reimbursement.

ARTICLE 15. ANNUAL LEAVE, also known as PAID TIME OFF

This Contract replaces the term “Annual Leave” with the term “Paid Time Off” or “PTO.” The purpose of PTO, however, is identical to that of Annual Leave – to provide Officers with paid leave that they may use for any reason.

I. PTO Hours Earned & Maximum Carryover.

As of January 1, 2021, Officers shall earn PTO at the following rates:

<u>Length of Service</u>	<u>PTO Hours Earned Per Year</u>	<u>PTO Hours Earned Per Pay Period</u>
0-4 years	100	3.846
5-9 years	128	4.924
10-19 years	160	6.154
20-24 years	168	6.462
25 years or more	180	6.923

PTO shall not be granted to an Officer until the Officer has completed six (6) consecutive months of City employment.

The maximum number of hours of PTO an Officer may carry over from one Contract Year to the next (the “Maximum Carryover”) is as follows:

<u>Length of Service</u>	<u>Maximum Carryover PTO Hours</u>
0-4 years	120
5-9 years	160
10 years and above	200

II. Carryover Annual Leave.

Officers who have earned Annual Leave in prior contract years and who have unused Annual Leave (“Carryover Annual Leave”) as of January 1, 2021 shall select from among one, or a combination, of the following options with respect to that Carryover Annual Leave:

A. Retain all or a portion of the Carryover Annual Leave for use as paid leave during the Contract Term, with the understanding that any Carryover Annual Leave remaining as of December 31, 2022 will be forfeited.

B. Defer all or a portion of the Carryover Annual Leave into the City’s Section 457 Retirement Savings Plan (the Plan), or a Health Savings Account, up to the maximum

permitted by applicable provisions of the Internal Revenue Code, with such deferment to be implemented not later than March 15, 2021; or

C. Accept payment, in cash, of the value of all or a portion of the Carryover Annual Leave, reduced by all applicable payroll withholdings and taxes, on or before March 15, 2021.

Officers shall advise the City's Human Resources Department of the option or options they have chosen with respect to Carryover Annual Leave no later than January 31, 2021. Should an Officer fail to do so, the Officer will receive a payment in cash no later than March 15, 2021.

III. Carryover PTO.

In each Contract Year, Officers will be permitted options regarding the PTO they earn, but do not use, that exceeds the Maximum Carryover PTO defined in Section I, above. Officers will be permitted to choose one or a combination of the following:

A. The Officer may accept payment, in cash, equal to the value of their Carryover PTO in excess of the Maximum Carryover PTO; or

B. The Officer may defer the value of their Carryover PTO in excess of the Maximum Carryover PTO into the Plan or a Health Savings Account up to the limit permitted by the Internal Revenue Code. By way of example, for Calendar Year 2020, the limit for Section 457 Plans is \$19,500 per year for Officers under the age of 50, and \$26,000 per year for Officers age 50 or older.

Each officer will advise the City Human Resources Department of the Officer's allocation of their Carryover PTO in excess of the Maximum Carryover PTO, between payment in cash or deferral into the Plan or a Health Savings Account, not later than January 31 of each Contract Year. Should an Officer fail to advise the City of the Officer's allocation, the Officer shall receive a payment in cash. All payments to the Officers, or allocations to their designated accounts, shall be made on or before March 15th of the following Contract Year.

IV. Usage and Scheduling.

The schedule for use of PTO shall be determined by the needs of the Department. PTO shall be taken at a time convenient to the Department and approved by the Chief or designee.

The maximum use of PTO shall be no greater than the amount accumulated by the employee during the pay period in which the leave is taken, and in no event shall the PTO exceed four (4) consecutive weeks unless otherwise authorized by the Chief or designee.

For personnel assigned to any other Bureau(s), PTO will be administered at the discretion

of the Chief or designee.

V. Bidding for PTO.

Each Officer will bid one PTO period, by seniority, for the Contract Year. Additional PTO periods will be granted, on a first requested basis, only after all seniority-bid PTOs have been scheduled.

The bidding process for PTO will begin on September 1 and shall be completed by October 31 of the Contract Year, as scheduled by the Chief or his designee.

PTO is to be scheduled in good faith by each Officer and shall specify the exact dates desired. All seniority-bid PTO shall consist of consecutive days up to 120 hours, but in no event shall seniority PTO exceed 120 hours unless approved by the Chief or his designee.

VI. Personal Emergency PTO

Up to twenty-four (24) hours of PTO may be used by an Officer on short notice in order to address personal emergencies or unforeseen circumstances that require the Officer's immediate response. In such cases, an Officer shall provide notice to her or his supervisor of the need to take Personal Emergency PTO as soon as possible. Use of Personal Emergency PTO shall only be disallowed when, in the Chief's determination, the Officer's absence would undermine public safety.

VII. PTO Pay.

The rate of PTO pay shall be the Officer's Hourly Rate of pay for performing their regular duties. PTO shall be allowed only to the total hourly amount accumulated during the pay period in which the leave is taken.

VIII. Work During PTO.

If after an Officer has begun a period of PTO, the City requires the Officer to return to work during that PTO, the Officer shall be compensated as follows:

A. The Officer shall receive Overtime Pay for hours worked during the scheduled PTO.

B. The Officer shall not be charged with PTO for the hours worked during the scheduled PTO.

IX. PTO Pay Upon Separation.

Any Officer who is separated from City employment, i.e., retirement, termination (if employee has completed six (6) months of continuous service with the City), or layoff,

shall be compensated for the unused PTO accumulated at the time of separation at the Officer's regular Hourly Rate. PTO is not to be used to extend an Officer's date of separation.

ARTICLE 16. HOLIDAYS & HOLIDAY LEAVE

I. Officers assigned to the Uniform Patrol Bureau shall be scheduled for one hundred (100) hours of Holiday Leave with pay per Contract Year. Scheduling will be made with the approval of the Chief or his designee.

II. Bidding for Holidays will commence during the annual bidding process and will be bid by seniority after the completion of all seniority PTO bid. PTO shall take priority over Holidays. Officers may bid a minimum of 10 (ten) hours of Holiday Leave up to a maximum of 40 (forty) hours. Holidays bid do not have to be bid in consecutive days. Any Holidays not scheduled by August 1 of the Contract Year may be assigned at the discretion of the Uniform Patrol Bureau Commander.

III. Officers assigned to the Investigative Services Bureau will be granted one hundred (100) hours of time off on the regularly observed Holidays. If a Holiday falls on one of their regularly scheduled days off, these Officers will be given an alternate day off. These Officers may also be granted a "Floating Holiday" option. They may be allowed to exchange any of the below listed Holidays for any other day in the Contract Year they are normally scheduled to work. Scheduling will be made with the approval of the Chief or his designee. The following shall be designated Holidays for Officers:

- A.** Martin Luther King Day
- B.** President's Day
- C.** Memorial Day
- D.** Independence Day
- E.** Labor Day
- F.** Thanksgiving Day
- G.** Friday After Thanksgiving
- H.** Christmas Eve
- I.** Christmas Day
- J.** New Year's Eve

IV. In addition to the Holiday Leave provided herein, Officers who are required to work on a designated Holiday shall be paid Overtime Pay for any shift that begins or ends on a designated Holiday, provided that Officers shall only receive Overtime Pay for one (1) Holiday shift per designated Holiday.

V. If after the Officer has begun their Holiday the Department requires the Officer to work during the scheduled Holiday period, the Officer shall be compensated as follows:

A. The Officer shall be paid Overtime Pay for all hours worked.

B. The Officer shall not be charged with Holiday Leave for the number of hours worked.

VI. When a new Officer is hired, they will receive an initial prorated Holiday Leave balance. When an Officer terminates before the end of the Contract Year, their Holiday Leave cash-out will be prorated.

VII. If a current Officer does not use all of their Holiday Leave by December 31 of a given Contract Year, the unused portion will be forfeited.

VIII. Holiday Leave will be administered at the discretion of the Chief or his designee for personnel assigned to any other Bureau(s).

ARTICLE 17. ADMINISTRATIVE LEAVE

Administrative Leave with pay may be granted to an Officer at the discretion of the Chief or his designee. This Leave is used when granting the Leave is in the best interests of the City and/or the Officer because the Chief or his designee determine the Officer should temporarily be relieved or otherwise excused from duty.

ARTICLE 18. FUNERAL LEAVE

The Chief shall grant Funeral Leave with pay to an Officer who is called upon to attend the funeral of a member of the Officer's family. The number of days granted shall be governed by the circumstances of the case, but in no event shall exceed seven (7) calendar days. For the purpose of this Article, an Officer's "family" shall mean the Officer's spouse, or the children, grandchildren, parents, grandparents, brothers and sisters of the Officer or of the Officer's spouse.

ARTICLE 19. MILITARY LEAVE

I. Officers who are absent from work for military service in one of the uniformed services, and who are otherwise eligible under the Uniformed Services Employment and Reemployment Rights Act (USERRA), shall be eligible for up to one hundred and twenty (120) hours of leave each calendar year. Officers shall give the Department as much notice as reasonably possible of any military service leave. Any Officer who remains on leave beyond the one hundred and twenty (120) hours of paid leave shall be placed on Military Leave without pay. Officers may elect to use accrued PTO or Compensatory Time Off in lieu of unpaid leave for all or any portion of their absence due to military service.

II. While on paid Military Leave, Officers shall continue to accrue PTO and Sick Leave and shall be eligible for any pay increases provided herein. Officers on military leave, whether paid or unpaid, shall continue to accrue seniority.

ARTICLE 19.5. WELLNESS VISITS

- I.** Officers and their spouses and children or stepchildren shall each be eligible to attend a minimum of six (6) mental health/wellness visits ("Wellness Visits") per Contract Year with a licensed mental health provider they select from a list of providers agreed upon by the Department and the EPBA.
- II.** The Department shall have no access to communications arising during or records of the content of Wellness Visits absent patient authorization in compliance with state and federal protections or a valid judicial order.
- III.** Officers will make a reasonable effort to schedule Wellness Visits during non-duty hours, but will be granted Administrative Leave with pay to attend Wellness Visits that must be scheduled during their duty hours.

ARTICLE 20. SICK LEAVE & SALARY CONTINUATION

I. Sick Leave

The Parties intend that, as of the Effective Date, the Catastrophic Leave program described in prior contracts will be discontinued and replaced with the Salary Continuation program described below.

A. Commencing January 1, 2021, each Officer shall receive one hundred (100) hours of Sick Leave on January 1 of each Contract year.

B. An Officer must notify her or his immediate supervisor, or other individual designated by the Chief, of the need to take Sick Leave and of the expected duration of the Leave, if known. Except in cases of emergency, Officers will provide notice of the need for Sick Leave at least one hour before their next scheduled shift.

C. Unused Sick Leave shall accrue from one Contract Year to the next.

D. Sick Leave shall not be paid out, and shall be forfeited in full, at resignation, retirement, or termination from City employment for any other reason.

E. Sick Leave is based on Officers' work schedules and must be taken in increments of not less than one (1) hour.

F. An Officer who requires more than three (3) consecutive days of Sick Leave must, as soon as reasonably possible, present her or his supervisor a health care provider's written verification that the Officer was injured or ill.

G. Sick Leave shall be available for the following purposes:

1. For an Officer to address her or his own mental or physical illness or injury not arising from employment with the City;

2. For an Officer to attend medical or dental appointments;

3. For an Officer to attend her or his children's medical or dental appointments; or

4. For an Employee to care for an Immediate Family Member who is injured or ill.

H. Pregnancy

1. Sick Leave shall be available to an Officer for the purpose of addressing any medical issue related to the Officer's pregnancy.

2. Likewise, Sick Leave shall be available to an Officer for the purpose of addressing any medical issue related to the Officer's spouse's pregnancy.

II. Salary Continuation

A. Commencing January 1, 2021, each Officer will become eligible for up to twelve (12) weeks of continued full or partial Salary during each Contract Year should the Officer, or an Immediate Family Member of an Officer, become seriously ill or disabled.

1. An Officer shall be entitled to continued payment of her or his full Salary in accordance with this Article in the event that the Officer becomes seriously ill or disabled as a consequence of circumstances not related to City employment. A serious illness shall include a complication of the Officer's pregnancy.

2. An Officer shall be entitled to continued payment of fifty percent (50%) of her or his Salary in accordance with this Article in the event that an Immediate Family Member of that Officer becomes seriously ill or disabled. A serious illness shall include a complication of the Officer's spouse's pregnancy. An Officer may use any available leave to provide the remaining fifty percent (50%) of her or his Salary while receiving partial salary payments under this provision.

B. Accessing Salary Continuation

1. An Officer who, at the time she or he needs to access Salary Continuation, has less than one hundred, sixty (160) hours of Sick Leave available, must have been absent from work for a period of not less than forty (40) consecutive work hours immediately preceding the Salary Continuation Period (the "40-Hour Elimination Period"). By way of example, an Officer who regularly works ten-hour shifts must be absent from work due to an illness or injury, or due to an Immediate Family Member's illness or injury, for no less than four (4) consecutive work days in order to become eligible for Salary Continuation.

2. An Officer who, at the time she or he needs to access Salary Continuation, has more than one hundred, sixty (160) hours, but less than three hundred, twenty (320) hours, of Sick Leave available, must have been absent from work for a period of not less than eighty (80) consecutive work hours immediately preceding the Salary Continuation Period (the "80-Hour Elimination Period"). By way of example, an Officer who regularly works ten-hour shifts must be absent from work due to an illness or injury, or due to an Immediate Family Member's illness or injury, for no less than eight (8) consecutive work days in order to become eligible for Salary Continuation.

3. An Officer who, at the time she or he needs to access Salary Continuation, has more than three hundred, twenty (320) hours, but less than one thousand (1000) hours, of Sick Leave available, must have been absent from work for a period of not less than one hundred, sixty (160) consecutive work hours immediately preceding the Salary Continuation Period (the "160-Hour Elimination Period"). By way of

example, an Officer who regularly works ten-hour shifts must be absent from work due to an illness or injury, or due to an Immediate Family Member's illness or injury, for no less than sixteen (16) consecutive work days in order to become eligible for Salary Continuation.

4. An Officer who, at the time she or he needs to access Salary Continuation, has more than one thousand (1000) hours of Sick Leave available, must have been absent from work for a period of not less than two hundred (200) consecutive work hours immediately preceding the Salary Continuation Period (the "200-Hour Elimination Period"). By way of example, an Officer who regularly works ten-hour shifts must be absent from work due to an illness or injury, or due to an Immediate Family Member's illness or injury, for no less than twenty (20) consecutive work days in order to become eligible for Salary Continuation.

5. A renewed Elimination Period shall apply during each Contract Year.

6. An Officer must use available Sick Leave during the Elimination Period. Should the Officer lack Sick Leave to cover the Elimination Period, she or he may use any combination of available PTO, Compensatory Time Off, Holiday Leave, or Donated Leave, or, if no other paid leave is available, may take Leave of Absence Without Pay, in order to satisfy the Elimination Period.

7. The Officer's request to access Salary Continuation must be accompanied by appropriate medical documentation, issued by a healthcare provider, of a serious illness or disability.

III. Intermittent Leave

A. An Officer who has been diagnosed with a "Serious Health Condition," as that term is defined at 5 U.S.C. § 6381 (the Family and Medical Leave Act), may access the Salary Continuation program for up to thirty (30) days of Intermittent Leave to address that condition under the following circumstances:

1. The Officer's treating healthcare provider has recommended Intermittent Leave for the Officer.

2. The Officer has exhausted not less than forty (40) hours of Sick Leave, or a combination of any available leave, during the Contract Year as a consequence of the Serious Health Condition.

B. An Officer who satisfies the criteria described above may access up to thirty (30) days of Salary Continuation on an intermittent basis through the end of the Contract year.

C. Intermittent Leave will be available exclusively for an Officer to address her or his own Serious Health Condition. It does not extend to care for Immediate Family

Members.

D. By way of example, an Officer is diagnosed with PTSD as a consequence of active duty military service. The Officer's treating neurologist and psychiatrist recommend that the Officer be permitted to take one day off from work when she experiences a significant panic attack, which typically occur with little warning and resolve within 24 hours. In July, the Officer has used 40 hours of Sick Leave to address this condition. She provides the City her treating healthcare providers' statements that she is expected to continue experiencing panic attacks and will benefit from continuing access to Intermittent Leave. She may then access the Salary Continuation program on an intermittent basis for up to 30 days of leave to address her chronic, Serious Health Condition through the end of the Contract Year.

ARTICLE 21. WORKERS' COMPENSATION and DEATH & DISABILITY BENEFITS

I. Worker's Compensation

A. For any on-the-job injury that causes an Officer to be absent from work as a result of such injury, the City shall pay to such Officer her or his full wages from the first day of absence from work, up to and including the twelfth (12th) week of such absence, less the full amount of those sums the Officer receives as Workers' Compensation disability benefits. Officers who are still unable to return to work after twelve (12) weeks due to an on-duty injury may utilize other available leave.

B. The City reserves the right to require any Officer on leave owing to a job-related illness, injury, or disability to submit to an independent medical examination(s), conducted by City-appointed physician(s) or other health care providers at the City's expense, or as provided under any applicable law or regulation.

C. An Officer injured while working shall report the injury to her or his supervisor before the Officer completes her or his shift, or, if delay is unavoidable, within twenty-four (24) hours of the injury, unless emergency or other circumstances beyond the control of the Officer require additional time.

II. Death & Disability

A. During the Contract Term, the City shall pay one-half (1/2) of the state-mandated contribution for death and disability benefits pursuant to C.R.S. § 31-31-811(4), C.R.S., for Officers hired after January 1, 1997.

B. When an Officer is killed in the line of duty, or dies from injuries sustained in the line of duty, the City shall pay the cost of reasonable funeral expenses incurred by the survivors, up to a maximum of ten thousand dollars (\$10,000). This amount shall be offset by any other payments provided by Workers' Compensation or any other insurance agency, organization, or plan.

ARTICLE 22. INSURANCE

I. MEDICAL

The City will pay ninety percent (90%) of the premium cost for "Officer Only" coverage; eighty-five percent (85%) of the premium cost for "Officer Plus One" coverage; and eighty percent (80%) of "Family" coverage for the medical insurance plan designated as the basic City plan. Officers will pay 10%, 15%, or 20% of the premium cost.

If the City offers any optional medical insurance plan(s), the Officer will pay the difference between the City's contribution described above and the premium cost of the optional plan chosen.

II. DENTAL

The City will pay ninety percent (90%) of the premium cost for "Officer Only" coverage; eighty-five percent (85%) of the premium cost for "Officer Plus One" coverage; and eighty percent (80%) of "Family" coverage for dental insurance. Officers will pay 10%, 15%, or 20% of the premium cost.

III. LIFE

Term life insurance will be provided by the City for Officers covered by this Contract in an amount equal to one year of the Officer's salary, as specified in Article 9 (Compensation).

IV. Any dispute concerning the interpretation or application of benefits provided under the health or dental plans shall be subject to the plan appeal process. It is expressly understood that this Article is a non-grievable item under this Contract.

ARTICLE 23. RETIREE HEALTH INSURANCE ASSISTANCE

It is understood and agreed by both parties that any referral to health insurance for retirees or future retirees is not to be construed as a part of this Contract. The City agrees to pay Retired Officers \$75.00 per month for Officers who retired on or before December 31, 1994; and \$100.00 per month for Officers who retired on or after January 1, 1995.

ARTICLE 24. PENSION / RETIREMENT PLANS

I. Officers and the City shall contribute to the Fire and Police Pension Association of Colorado (the “FPPA”) Statewide Defined Benefit Plan (the “SDBP”) in accordance with those statutes and regulations that govern the FPPA.

II. Nothing in this Article 24 shall prohibit the City from offering an alternative, or an additional, retirement savings program option for Officers.

ARTICLE 25. RULES AND REGULATIONS

I. Except as limited by the express terms of this Contract, the City retains the right to promulgate reasonable rules, regulations, policies, procedures and directives. Said rules, regulations, policies, procedures, and directives that are an alleged violation of this Contract shall be subject to the Grievance Procedure.

II. The City agrees to meet and confer in a timely manner with the EPBA concerning the formulation of changes of rules and regulations, policies, procedures, and directives.

ARTICLE 26. DUES DEDUCTION

I. The City agrees to deduct the EPBA dues once each pay period from the pay of those Officers who individually request in writing that such deductions be made, subject to the garnishment laws of the State of Colorado. The amounts to be deducted shall be certified to the City Director of Human Resources by the Treasurer of the EPBA, and the aggregate deductions of all Officers shall be remitted together with an itemized statement to the Treasurer by the 15th day of the succeeding month, after such deductions are made. The authorization shall be revocable during the Term of the Contract, upon a thirty (30) day written notice by the Officer to the City Finance and Administrative Services Director.

II. If no wages are paid an authorized Officer on the last pay period of a given pay period, deduction for that pay period will be made from any wages which may be paid to him/her on the next succeeding final monthly City pay period. It is expressly understood that the City assumes no liability and shall not be liable for the collection or payment to the EPBA of any dues during any time that an Officer is not actually working for the City and actually on the payroll of the City. In the event of error on the check-off list or missed deduction, the City will not be responsible to make adjustments, until notified by the Treasurer of the EPBA.

III. The EPBA shall indemnify and hold the City harmless against any and all claims, suits, orders, or judgments brought or issued against the City as a result of any action taken or not taken by the City under the permission of this Article.

IV. Changes in the dues amount to be deducted shall be limited to two (2) changes each year and provided a thirty (30) day written notice is provided the City Director of Human Resources.

V. Should the change in the deduction amount or method require a computer programming change, the EPBA shall be responsible for 100% of the cost of such change or changes. The City and the EPBA shall discuss and agree upon any necessary programming changes and the associated costs before any such work begins. Payment from the EPBA shall be made to the City Director of Human Resources within ten (10) days of receipt of billing.

ARTICLE 27. ASSOCIATION ACTIVITIES

The City agrees that during working hours on the City premises and without loss of pay, EPBA representatives may be allowed to: attend EPBA-management meetings; attend negotiation sessions; post EPBA notices on City designated bulletin boards; solicit EPBA memberships during Officers' non-work time; and represent Officers on grievances and disciplinary matters provided the work load permits as determined by the Chief or his designee and requires no overtime pay.

ARTICLE 28. CORRECTIVE ACTION and DISCIPLINARY ACTION

- I.** Corrective Action and Disciplinary Action may be imposed, in the discretion of the Chief or his designee, as provided for in the Policy Manual.
- II.** The Department's creation of a Log Entry, or its issuance of a Letter of Corrective Action, shall not be subject to Grievance.
- III.** The Department shall provide an Officer notice in advance of a meeting, conference, hearing, or other interaction that may result in the imposition of a Corrective Action or a Disciplinary Action.
- IV.** An Officer may be accompanied by another Officer of her or his choosing, or by an attorney, during any meeting, conference, hearing, or other interaction that the Officer reasonably believes could result in the imposition of a Corrective Action or Disciplinary Action. The Department is not obligated to unreasonably delay such a meeting, conference, hearing, or other interaction based upon the availability of the person the Officer chooses to accompany her or him.
- V.** The Department shall provide the EPBA reasonable advance notice of, and an opportunity to submit written comments responding to, proposed substantive changes to the Corrective Action and Disciplinary Action procedures set forth in the Policy Manual. Nothing in this Section (IV) shall be understood to limit the Department's authority to establish, and to amend, its policies and procedures regarding Corrective Action and Disciplinary Action.
- VI.** This Article 28 shall, in all respects, be subject to federal and state statutes and regulations, as well as City ordinances, mandating or otherwise governing the imposition of disciplinary measures by the Department.

ARTICLE 29. RESERVED

ARTICLE 30. GRIEVANCE PROCEDURE

I. A grievance is defined as an alleged violation concerning the interpretation or application of a specific provision of this Contract. The Officer and the EPBA shall be required to follow the procedure as set out below.

Step 1

If the Officer or EPBA is unable to settle the grievance or dispute orally and informally through the immediate supervisor within seven (7) calendar days of the date of the occurrence of the grievance, or the Officer's knowledge of it, the Officer may within the succeeding seven (7) calendar days file a written grievance with their supervisor. The supervisor shall attempt to resolve the matter and shall respond in writing to the Officer within seven (7) calendar days. An EPBA or general grievance shall be presented directly by the President of EPBA or his designee to the Chief.

Step 2

If the grievance still remains unresolved, it shall be presented by the Officer to the Chief or his designee in writing within fourteen (14) calendar days following receipt of the supervisor's response. The Chief shall respond in writing within fourteen (14) calendar days.

Step 3

If the grievance still remains unresolved, it shall be presented by the Officer to the City Manager in writing within fourteen (14) calendar days following receipt of the Chief's response. The City Manager or their designated representative shall respond in writing within fourteen (14) calendar days.

Step 4

If the grievance is still unresolved, the Officer, within fourteen (14) calendar days after the reply of the City Manager or their designated representative, may by written notice request the matter be heard by an arbitrator. If within five days of the request for arbitration the EPBA and the City cannot mutually agree on an impartial arbitrator, a request will be filed with the Federal Mediation and Conciliation Service (FMCS) for a panel of seven arbitrators to be sent to the Parties. The arbitrator shall be selected by a method of alternative striking of names from the panel, with the first strike determined by a coin flip. The final name left on the panel shall be the arbitrator. The arbitrator shall be requested to issue a decision within thirty (30) days after conclusion of testimony and argument.

II. Each Party shall be responsible for compensation to its own representatives and witnesses. The fees of the arbitrator shall be shared equally by the EPBA and the City. If either Party desires a *verbatim* record of the proceedings, it may cause such a record to

be made, provided it pays for the record and makes copies available to the arbitrator. If the other Party wishes to have a copy of the transcript, it shall share equally all costs of the transcript.

III. Failure by an Officer or the EPBA to comply with any time limitation shall constitute a settlement of the grievance. Should the City not respond within the prescribed time, the grievance will automatically proceed to the next step. At the Officer's option, the City may be allowed additional time to respond.

IV. Authority of Arbitrator

The arbitrator shall have no power to add to or subtract from or change the terms of this Contract. The written decision of the arbitrator shall be final and binding upon the Parties. The arbitrator shall limit their decision strictly to the grievance submitted which has been properly processed through the grievance procedure outlined.

V. Processing Grievance During Working Hours

Grievances may be investigated and processed by the Officer and one (1) on-duty EPBA representative at the Officer's request during working hours within reasonable time limits without loss of pay, provided notice is given and the work load permits.

ARTICLE 30.5. LABOR-MANAGEMENT COMMITTEE

- I.** A Labor-Management Committee (an “LMC”) consisting of four (4) members appointed by the EPBA and four (4) members appointed by the City shall meet on a quarterly basis.
- II.** The LMC will address issues that are not addressed through other existing committees, through grievance procedures, or through collective bargaining.
- III.** The EPBA and the Human Resources Department will jointly prepare an agenda for each LMC meeting.
- IV.** The LMC shall provide the City and the EPBA an informal forum for the periodic discussion of issues of interest and a mechanism for preventing problems from becoming grievances.

ARTICLE 31. EXCLUSIVENESS OF CONTRACT

The City and the EPBA agree that the terms and provisions herein contained constitute the entire Contract between the Parties and supersede all previous communications, representations, and agreements, either verbal or written, between the Parties with respect to the subject matter herein. The City and the EPBA agree that all negotiable items have been discussed during the negotiations leading to this Contract and therefore, agree that negotiations will not be reopened on any item during the life of this Contract except as expressly provided for In Article 1 and Article 9 of this Contract, or as subsequently agreed upon by the Parties.

This Collective Bargaining Agreement By and Between the City of Englewood, Colorado and the Englewood Police Benefit Association for the period commencing January 1, 2021 and concluding December 31, 2022, may be executed in counterparts, each executed version of which shall together form a single agreement.

The City of Englewood, through its authorized representatives whose signatures appear below, accepts the terms and conditions of this Collective Bargaining Agreement for the period January 1, 2021 through December 31, 2022.

THE CITY OF ENGLEWOOD, COLORADO

By:

Shawn Lewis, City Manager

Date

Linda Olson, Mayor

Date

ATTEST:

Stephanie Carlile, City Clerk

This Collective Bargaining Agreement By and Between the City of Englewood, Colorado and the Englewood Police Benefit Association for the period commencing January 1, 2021 and concluding December 31, 2022, may be executed in counterparts, each executed version of which shall together form a single agreement.

The Englewood Police Benefit Association, through its authorized representative whose signature appears below, accepts the terms and conditions of this Collective Bargaining Agreement for the period January 1, 2021 through December 31, 2022.

ENGLEWOOD POLICE BENEFIT ASSOCIATION

By:

Dirk Smith, President

Date